

ORIGINAL

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(MARCH 15, 1993)
(FEDERAL MARITIME COMMISSION)

FEDERAL MARITIME COMMISSION

WASHINGTON, D.C.

March 15, 1993

DOCKET NO. 89-26

THE GOVERNMENT OF THE TERRITORY OF GUAM, ET AL.

v.

**SEA-LAND SERVICE, INC. AND
AMERICAN PRESIDENT LINES, LTD.**

MODIFICATION OF PROCEDURAL SCHEDULE

In response to Sea-Land Service, Inc.'s motion, a settlement conference was convened on March 10, 1993, among the parties. Settlement discussions are continuing and, in the circumstances, enlargement of time is warranted for certain filings and for commencing the hearing. Since the case is proceeding on two tracks, both hearing and settlement, the Commission's position on settlement mentioned at the conference bears repeating.

It has been stated before but it is worth thinking about again that the law favors the resolution of complaints through compromise and settlement rather than litigation; it results in a savings of time and money for your clients

and the courts and is faster and less expensive than litigation. It is thus advantageous to the independent administrative agencies such as this Commission and to reviewing courts and ultimately to society at large. Moreover, and this is often lost sight of, the use of compromise and settlement is conducive to amicable and peaceful relations between the parties to a controversy and beneficial to future business arrangements. The art of settlement is compromise. The final settlement arrangement may reflect an appropriate acknowledgement for the costs involved to secure the rewards of a final decision bearing in mind the time and expense involved until the exhaustion of judicial relief. Gauging the uncertainties in the outcome of litigation calls for the wisdom of a "Philadelphia lawyer." I'm confident that all the parties have confidence in their cause and in their ability to ultimately prevail. However, all parties should carefully ponder the difficulty in predicting the outcome of this litigation. If we press on to hearing now, it will be a long time before you again have the opportunity to pause and weigh the various factors. To find out whether the complaint is ultimately dismissed or granted will take years. I commend you to exert your best efforts on behalf of your clients to settle this proceeding now.

The following agreed-upon changes to the schedule are approved:

- Final witness lists are due March 16, 1993.
- Prehearing memoranda are due March 26, 1993.
- The oral hearing now scheduled to open on April 13, 1993, is postponed to April 27, 1993, at a location to be announced later.


Frederick M. Dolan, Jr.
Administrative Law Judge